

HOUSE BILL No. 1415

DIGEST OF INTRODUCED BILL

Citations Affected: IC 32-30-6.

Synopsis: Limits on nuisance actions against racetracks. Provides that a racing facility or racetrack or any of its appurtenances is not and does not become a nuisance, public or private, within the area of the racing facility or racetrack, in an action brought by a person who purchased or improved property within the area of the racing facility or racetrack or its appurtenances after the racing facility or racetrack initially commenced operation as a racing facility or racetrack.

Effective: July 1, 2026.

Baird, Commons

January 8, 2026, read first time and referred to Committee on Local Government.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1415

A BILL FOR AN ACT to amend the Indiana Code concerning property.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 32-30-6-1.3 IS ADDED TO THE INDIANA CODE
2 AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY
3 1, 2026]: **Sec. 1.3. As used in this chapter, "area of the racing**
4 **facility or racetrack" means the area located within a five (5) mile**
5 **radius of the perimeter of the property or contiguous group of**
6 **properties operated as a racing facility or racetrack.**

7 SECTION 2. IC 32-30-6-4.5 IS ADDED TO THE INDIANA CODE
8 AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY
9 1, 2026]: **Sec. 4.5. As used in this chapter, "racing facility or**
10 **racetrack" means a designated area or facility where competitive**
11 **vehicle and motorsport races are conducted. The term includes the**
12 **track, spectator areas, garages, and any associated grounds,**
13 **buildings, or appurtenances used to operate the races.**

14 SECTION 3. IC 32-30-6-8.5 IS ADDED TO THE INDIANA CODE
15 AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY
16 1, 2026]: **Sec. 8.5. (a) This section does not apply if a nuisance**
17 **results from the negligent operation of a racing facility or**



1 racetrack or the racing facility's or racetrack's appurtenances.

2 (b) A racing facility or racetrack or any of its appurtenances is
3 not and does not become a nuisance, public or private, within the
4 area of the racing facility or racetrack, in an action brought by a
5 person who purchased or improved property within the area of the
6 racing facility or racetrack or its appurtenances after the racing
7 facility or racetrack initially commenced operation as a racing
8 facility or racetrack.

9 (c) Subsection (b) applies to a racing facility or racetrack
10 regardless of any changes to the:

11 (1) size, scope, or configuration of the racing facility or
12 racetrack;

13 (2) technology used at the racing facility or racetrack;

14 (3) type of racing conducted at the racing facility or
15 racetrack; or

16 (4) ownership of the racing facility or racetrack.

17 (d) Subject to subsection (e), a political subdivision (as defined
18 in IC 36-1-2-13) may not adopt or enforce any ordinance,
19 resolution, or regulation that would restrict, limit, or prohibit the
20 operation of a racing facility or racetrack in a manner inconsistent
21 with subsection (b).

22 (e) This section may not be construed to exempt a racing facility
23 or racetrack from compliance with federal, state, or local health or
24 safety laws or ordinances.

